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TENTATIVE RULING

August 10, 2026

26SMCV01077 (Mah, et. al. v. Chu,
et. al.)

RELEVANT BACKGROUND

On February 25, 2026,
plaintiffs Janette Mah (Mah) and Justin Choi (Choi) (collectively, Plaintiffs)
filed their complaint against defendants Michael Chu (Chu), Michael Sellers
(Sellers), and Hannah Ndiritu (Ndiritu) (collectively, Defendants). Plaintiffs
allege seven causes of action: 1. Private Nuisance; 2. Negligence; 3. Breach of
Conditions, Covenants, and Restrictions (CC&Rs); 4. Civil Assault; 5.
Intentional Infliction of Emotional Distress; 6. Negligent Infliction of
Emotional Distress; and 7. Declaratory Relief.

Plaintiffs Mah and her
son, Choi, allege noise-related issues in connection with Plaintiffs' occupancy
of real property at 120 S. Crescent Drive, Unit 105, Beverly Hills, CA 90212. (Compl.
¶ 1.) Chu is the alleged owner of Unit 305, which is located above Plaintiffs'
unit, Unit 105. (Id. ¶ 3.) Sellers and Ndiritu reside in Unit 305. (Id. ¶ 4-5.)

Plaintiffs allege that Chu
installed flooring with insufficient sound insulation in Unit 305, and
Plaintiffs began experiencing severe and continuous noise permeation coming
through the floor-ceiling assembly of the unit directly above theirs—Unit

305—following the replacement of carpeted flooring by Chu with hard-surface flooring in that Unit. (Id. ¶ 9.)

INSTANT MOTION

On April 13, 2026, Chu filed the instant demurrer to the first, fifth, and sixth causes of action, as well as a motion to strike punitive damages. Plaintiffs filed oppositions, and Chu filed replies.

MEET AND CONFER

The Court finds that Chu has satisfied the meet and confer requirement. (Milligan Decl. ¶ 3-5.)

DISCUSSION

As set forth in detail below, Chu's demurrer to the first and fifth cause of action is overruled, the demurrer to the sixth cause of action is sustained with leave to amend, and the motion to strike is denied.

I. DEMURRER

A. Private Nuisance – First Cause of Action

A private nuisance includes “[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.” (Civ. Code, § 3479.) “ ‘[E]xcessive and inappropriate noise may under certain circumstances constitute an interference with the present enjoyment of land amounting to a nuisance.’ ” (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 264.)

To prevail on an action for private nuisance, a plaintiff must prove (1) a substantial interference with the plaintiff's use and enjoyment of his or her property, i.e., that it cause[s] the plaintiff to suffer ‘substantial actual damage’ ”; and (2) “[t]he interference with the protected interest must not only be

substantial, but it must also be unreasonable' [citation], i.e., it must be 'of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.' " (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938.)

"[T]he elements of substantial damage and unreasonableness necessary to making out a claim of private nuisance are questions of fact that are determined by considering all of the circumstances of the case" according to an objective standard of whether " 'normal health and sensibilities living in the same community' " would be substantially damaged by the interference and whether an impartial reasonable person would consider the interference unreasonable. (Mendez, supra, 3 Cal.App.5th at pp. 263–264; see San Diego, supra, 13 Cal.4th at pp. 938–939.)

The Court is not persuaded by Chu's argument that this cause of action is duplicative of the second cause of action for negligence. *El Escorial Owner's Assn v. DLC Plastering Inc.* (2007) 154 Cal.App.4th 1337, 1349 does not assist Chu. Chu is generally correct that, "[w]here negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim." (Id. at p. 1349.) But, in *El Escorial*, the private nuisance and negligence causes of action relied on exactly the same facts. (Ibid.) That is not the case here, as the private nuisance and negligence claims rely on different facts.

Here, for the negligence cause of action, Plaintiffs allege that Chu owed a duty of care to install the flooring and the underlayment in Unit 305 and breached the duty by installing the floors without permits, failing to fix the floors, not following the HOA's instructions and conducting shoddy work to try to remediate the issue (Id. ¶ 31-35). In contrast, for the private nuisance cause of action, Plaintiffs allege that Chu maintained or allowed a condition, excessive impact noise transmission from Unit 305 to Unit 105, that continues to interfere with Plaintiffs' comfortable use and enjoyment of the Property. (Id. ¶ 22-26.) The Court disagrees with Defendant's arguments in reply that the facts are the same for these causes of action.

In reply, Defendant cites *Lussier v. San Lorenzo Valley Water District* (1988) 206 Cal. App. 3d 92. Defendant asserts that "[t]he take-away from the *Lussier* court's ruling is, ultimately

the Court found no distinction between a claim for Nuisance and Negligence against the District regarding the rainstorm damage to plaintiff's property." (Reply at 5:8-10.) But Lussier does not assist Defendant. That case involved government liability and the issue of immunity where a government entity's negligence concerning a natural condition (there, timber, debris and water washed from a heavy rainstorm) injuriously invaded another's right to the use and enjoyment of his property.

In Lussier, property owners sued for damages suffered when timber, debris and water washed from the water district's land onto their property during a heavy rainstorm. (Id. at p. 98.) The court disagreed with the water district's contention that, "because the Supreme Court [in Sprecher] carefully and expressly focused its holding on negligence actions, the common law rule still provides absolute immunity from liability in nuisance actions." (Id. at p. 99.) The court noted that "the negligence and nuisance allegations in plaintiffs' complaint are essentially identical. And at trial, counsel for plaintiffs agreed that the crux of the case was 'whether the Water District failed to do what they [sic] should have done because the consequences here were fairly obvious.'" (Id. at p. 103.) The court concluded, "where one's negligence concerning a natural condition of his land injuriously invades another's right to the use and enjoyment of his property, nuisance liability may arise. Thus, despite the Sprecher court's expressly limited focus on negligence actions, its holding extends further and leads ineluctably to the conclusion that a possessor of land is no longer absolutely immune from nuisance liability for injuries caused by natural conditions." (Id. at p. 101.) No similar facts are present here, and Lussier does not assist Chu's argument.

Accordingly, Chu's demurrer to the first cause of action is OVERRULED.

B. Intentional Infliction of Emotional Distress – Fifth Cause of Action

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous

conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.) “Whether a defendant’s conduct can reasonably be found to be outrageous is a question of law that must initially be determined by the court; if reasonable persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous.” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.)

Here, Defendant argues that the complaint fails to allege facts sufficient to establish outrageous conduct. The Court disagrees.

The Complaint alleges that Chu engaged in a persistent, intentional, and outrageous course of conduct that caused Plaintiffs significant distress. Specifically, Plaintiffs allege that Chu permitted the installation of hard surface flooring with inadequate sound insulation in violation of California Building Code requirements. (Id. ¶¶ 9-10.) After professional acoustical testing confirmed the code violations, the HOA issued a formal notice directing Chu to replace the flooring or install wall-to-wall carpeting within forty-five (45) days. (Id. ¶ 11.) Rather than comply, Chu allegedly placed a single area rug over only part of the living room, while leaving the remaining defective flooring completely exposed. (Id.) The Complaint further alleges that in March 2025, Chu reused the defective flooring, installed inadequate underlayment, and again failed to obtain required City permits. (Complaint ¶ 12.) Thereafter, the HOA issued a second formal notice documenting Chu’s continuing noncompliance and directing him to complete remediation. (Id. ¶ 16.) Plaintiffs’ counsel then sent a formal demand letter advising Defendants that Plaintiffs continued to suffer harm and demanding immediate corrective action. (Id. ¶ 18.) Despite these repeated notices, Chu refused to perform the required repairs and, as of the filing of the Complaint, had not even begun the required remediation. (Id. ¶¶ 17-20.) The Complaint further alleges that, despite knowing of the documented noise condition, its effects on Plaintiffs, and the conflict it was causing with the occupants of Unit 305, Chu took no reasonable steps to mitigate the noise transmission. (Complaint ¶ 15.) These allegations are expressly incorporated into Plaintiffs’ cause of action for IIED. (Id. ¶ 54-63.) Plaintiffs also allege that Chu was aware that Sellers physically threatened and intimidated Choi. (Id. ¶ 57.) Lastly, Plaintiffs allege that they have suffered serious emotional distress, including but not limited to anxiety, sleep disruption, loss of concentration, nervousness, fear, and other physical and psychological

symptoms. (Id. ¶ 59.)

The Court is not persuaded by Chu's argument in reply that the alleged conscious failure to repair and remediate cannot constitute outrageous conduct. *Ochoa v. Superior Court* (1985) 39 Cal.3d 159, 165, is not analogous and does not assist Chu. That case involved a wrongful-death action against a county by parents who alleged emotional distress for witnessing the lack of medical treatment to their minor child who was incarcerated at a juvenile facility. (Id. at p. 162-163.) No similar facts are present here.

Also, Chu acknowledges in reply that a tenant may properly state a cause of action for IIED where the complaint alleged that plaintiff suffered extreme emotional distress as a result of a defendants' "knowing, intentional and willful failure to correct defective conditions of the premises," citing *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903. Chu attempts to distinguish *Stoiber* on the basis that it involved habitability rather than nuisance, but Chu cites no authority suggesting that an action involving nuisance cannot support a claim for IIED.

Lastly, Chu's contentions in reply regarding the nature and extent of the severe emotional distress are unsupported and ignore the allegations in the complaint, which are sufficient at the pleading stage. (See Compl. ¶ 59.)

Based on the foregoing, the Court finds that the complaint alleges facts sufficient to state a cause of action for IIED.

Accordingly,
Chu's demurrer to the fifth cause of action is OVERRULED.

C. Negligent Infliction of Emotional Distress – Sixth Cause of Action

The elements of a claim for negligent infliction of emotional distress (NIED) are: (1) legal duty to use due care; (2) breach of such legal duty; (3) damage or injury; and (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129; see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985.)

“The

law of negligent infliction of emotional distress in California is typically analyzed by reference to two theories of recovery: the ‘bystander’ theory and the ‘direct victim’ theory. The negligent causing of emotional distress is not an independent tort, but the tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law.” (Spates v. Dameron Hosp. Ass’n (2003) 114 Cal.App.4th 208, 213, ellipses, quotation marks, brackets, and paragraph breaks omitted.)

“The

‘bystander’ cases... ‘all arise in the context of physical injury or emotional distress caused by the negligent conduct of a defendant with whom the plaintiff had no preexisting relationship, and to whom the defendant had not previously assumed a duty of care beyond that owed to the public in general.’ [Citation.]... ‘In the absence of physical injury or impact to the plaintiff himself, damages for emotional distress should be recoverable only if the plaintiff: (1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.’” (Burgess, 2 Cal.4th at p. 1072, citing Thing v. La Chusa (1989) 48 Cal.3d 644 (emphasis in original).)

Duty is also an element of a negligent emotional distress infliction cause of action. [Citations.] The cause of action is not, in general, well-defined. However, it is well-settled that negligent emotional distress infliction is not an independent tort; rather it is the tort of negligence to which the duty element applies. [Citations.] Moreover, as the Supreme Court has held, “[T]here is no duty to avoid negligently causing emotional distress to another.” [Citations] As the Supreme Court explained in Potter, “[D]amages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff.” [Citation.] The independent duty may be imposed by law, assumed by the defendant, or exist by virtue of a special relationship between the parties. [Citations.] Plaintiff does not contend a duty arose because of any special relationship between the parties. Therefore, we turn to the questions of whether defendants breached a duty imposed by law or assumed by

them. Whether a duty exists is a question of law. [Citations.]

“[T]he label ‘direct victim’ arose to distinguish cases in which damages for serious emotional distress are sought as a result of a breach of duty owed the plaintiff that is ‘assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.’”

[Citations.]

(Friedman v. Merck & Co. (2003)

107 Cal.App.4th 454, 463.)

Here,

Chu argues that Plaintiffs fail to allege any special relationship imposed upon plaintiffs, because Chu’s alleged negligence concerns purported duties that relate to the repair/remediation of flooring rather than any special relationship, citing Burgess, 2 Cal.4th 1064.

Plaintiffs

do not address this argument in opposition.

The

Court agrees with Chu that there is no special relationship or other independent duty alleged in the Complaint that supports the NIED claim. (See Compl. ¶¶ 61-64; Burgess, 2 Cal.4th 1064; Friedman, 107 Cal.App.4th 463, citing Potter, 6 Cal.4th 985.) The Court also agrees with Chu that the facts do not support bystander liability. (Id.; Thing, 48 Cal.3d 644.)

Accordingly,

Chu’s demurrer to the sixth cause of action is SUSTAINED WITH LEAVE TO AMEND.

II. MOTION TO STRIKE

PUNITIVE DAMAGES

In light of

the foregoing ruling on the IIED cause of action, the motion to strike the punitive damages allegations is DENIED.